

Justification & Approval
Natural Resources and Environment (NRE) Mission Area
United States Department of Agriculture
Federal Acquisition Regulation (FAR) Part 6.3 or 13.5, 41 U.S.C. 1901

1. Identification of the agency and the contracting activity.

1a. Requesting Activity Agency: San Juan National Forest

1b. Contracting Activity: PPS SPOC/FPO Intermountain Zone

2. The nature and/or description of the action being approved.

The Pagosa Dwelling #1 boiler is no longer repairable and nor operable resulting in the building not having heat or hot water. If not replaced, it poses a health and safety risk for the inhabitants anticipated to arrive in May 2025 for the wildfire season. Furthermore, Rangeland Management, Recreation, timber sales, and seven trail/timber crew members, critical to wildfire response/assistance, are scheduled occupy the building as well starting in May. The personnel are critical too each program area and a lack of housing due to now heat or hot water will reduce the effectiveness of these program areas. This camp reduces responses times to the areas and is vital to the safety of the personnel and persons in the surrounding area.

3. The statutory authority permitting other than full and open competition.

41 U.S.C. 3304(a)(2), as implemented by FAR 6.302-2, titled "Unusual and compelling urgency."

4. A statement demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

The boiler failure will prevent the additional seasonal personnel from being housed at the compound and is critical to the wildfire response time within the area. If the issue is not resolved within the coming weeks, it will not have the capacity to house the seasonal workers schedule to report at the beginning of May 2025. The current contractor identified, MEDVED Global, has the boiler repair capabilities, expertise, and can respond immediately to assess and repair the boiler system, prior to the personnel reporting for assignment. MEDVED has worked past projects for this Forest and has knowledge of the area and facilities. They have extensive experience in new and existing construction, renovations, remodels, boiler replacement work and mobilizing quickly to assess emergencies all in various project sizes. Their experience demonstrates the ability to work on many different aspects of projects and having the knowledge of issues that can arise when coming into existing projects.

5. A description of efforts made to ensure offers are solicited from as many potential sources as is practicable.

The notice to sole source will be posted to SAM.gov. Due to the nature of the project and timelines that need to be met, the project will be a direct award to MEDVED via Small business set aside in order to expedite the repairs and complete the repairs prior to the additional personnel reporting.

6. Any other facts supporting the use of other than full and open competition.

Posting a solicitation to SAM.gov for 30 days would cause undo delay and would not provide adequate housing for four Helitac (firefighter) employee causing overcrowding and health concerns.